

Sadducees, Boethusians, Herodians, and 'Am Ha'aretz

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Sources

1. Early Rabbinic Literature (Mishnah, Tosefta, etc.)
2. Josephus
3. New Testament
4. Sadducean Writings (?)

Josephus - 3 Streams of 2nd Temple Judaism

There are three philosophical sects among the Jews. The followers of the first of which are the Pharisees; of the second, the Sadducees; and the third sect... are called Essens. (Josephus, *The Jewish War* 2:2 [Whiston Translation])

The Jews had for a great while had three sects of philosophy peculiar to themselves; the sect of the Essens, and the sect of the Sadducees, and the third sort of opinions was that of those called Pharisees (Josephus, *Antiquities of the Jews* 18:1:2 [Whiston Translation])

Josephus was a Pharisee

And when I was about sixteen years old, I had a mind to make trim of the several sects that were among us. These sects are three: — The first is that of the Pharisees, the second that Sadducees, and the third that of the Essens, as we have frequently told you; for I thought that by this means I might choose the best, if I were once acquainted with them all; so I contented myself with hard fare, and underwent great difficulties, and went through them all. Nor did I content myself with these trials only; but when I was informed that one, whose name was Banus, lived in the desert, and used no other clothing than grew upon trees, and had no other food than what grew of its own accord, and bathed himself in cold water frequently, both by night and by day, in order to preserve his chastity, I imitated him in those things, and continued with him three years. So when I had accomplished my desires, I returned back to the city, **being now nineteen years old, and began to conduct myself according to the rules of the sect of the Pharisees, which is of kin to the sect of the Stoics, as the Greeks call them.** (Josephus, *Life* 2)

Sadducees on Scripture vs. Oral Law

But the doctrine of the **Sadducees** is this... nor do they regard the observation of any thing besides what the law enjoins them; for they think it an instance of virtue to dispute with those teachers of philosophy whom they frequent. (Josephus, *Antiquities of the Jews* 18:1:4)

What I would now explain is this, that the Pharisees have delivered to the people a great many observances by succession from their fathers, which are not written in the laws of Moses; and for that reason it is that the **Sadducees** reject them, and say that we are to esteem those observances to be obligatory which are in the written word, but are not to observe what are derived from the tradition of our forefathers. (Josephus, *Antiquities of the Jews* 13:10:6)

“On the fourth of Tamuz the Book of Decisions was overthrown” – Because the Sadducees had a book in which were written decisions about which [Torah commandments] incur burning, and which execution by sword, and which strangulation. And if someone asked them, “How do you know this incurs stoning and that incurs burning?”, they would not know how to bring proof from the Torah, but [respond] that it is written and laid up in the Book of Decisions. On the day [the Pharisees] abolished it, they made it a day of celebration. (*Scholion on Megilat Ta’anit*, Version A¹)

“On the tenth of Tamuz the Book of Decisions was abolished and overthrown” – The Boethusians used to write Scriptural interpretations in a book and when someone asked, they would show him in the book. The Rabbis said to them, Has it not already been written, “according to these words I made with you and Israel a covenant” (Ex 34:27) “according to the instruction that they teach you, etc.” (Dt 17:11). This teaches that it is forbidden to right down interpretations. Another explanation of “Decisions” – The Boethusians used to say that “an eye for an eye, a tooth for a tooth” means that if a person knocked out his fellow’s tooth, [his fellow] may knock out his tooth, and if he blinded his fellow’s eye, [his fellow] may blind his eye, so that they are both equal. [Furthermore,] “and they shall spread out the cloth before the elders of the city” (Dt 22:17) refers to an actual cloth; “and she shall spit in his face” means she actually spits in his face. The Rabbis said to them, Has it not already been written, “[And YHWH said to Moses, Come up to Me to the mountain and be there and I will give you the tablets of stone,] the instruction and the commandment which I wrote to teach them.” (Ex 24:12). [The words “to teach them” refer to the Oral Torah”.²] It is also written, “And now write for yourselves this song and teach it to the children of Israel and place it in their mouths.” (Dt 31:19). “And teach it” refers to Scripture, “place it in their mouths” refers to the interpretations. (*Scholion on Megilat Ta’anit*, Version B)

Boethusians	Sadducees
Tosefta, Yoma 1:8	Babylonian Talmud, Yoma 19b
Mark 8:15 (Herodians)	Matthew 16:6
Scholion on Megilat Ta’anit, Version B, (Tamuz)	Scholion on Megilat Ta’anit, Version A, (Tamuz)
Tosefta, Sukah 3:16	Babylonian Talmud, Sukah 48b
Tosefta, Sanhedrin 6:6	Babylonian Talmud, Chagiga 16b

¹ Hebrew text from, V. Noam, *Megillat Ta’anit: Versions, Interpretation, History with a Critical Edition*, Yad Ben-Zvi press, Jerusalem 2003, pp.77–79 [Hebrew]. My Translation.

² See *Babylonian Talmud*, Berachot 5a.

Sadducees/ Herodians

Take heed and beware of the leaven of the **Pharisees** and of the **Sadducees**. (Mat 16:6)

Take heed, beware of the leaven of the **Pharisees**, and of the leaven of **Herod**. (Mark 8:15)

Herod Marries Daughter of Simon ben Boethus and Appoints Him as High Priest

There was one **Simon**, a citizen of Jerusalem, **the son of one Boethus**, a citizen of Alexandria, and a priest of great note there; this man had a daughter, who was esteemed the most beautiful woman of that time; and when the people of Jerusalem began to speak much in her commendation, it happened that **Herod** was much affected with what was said of her; and when he saw the damsel, he was smitten with her beauty, yet did he entirely reject the thoughts of using his authority to abuse her, as believing, what was the truth, that by so doing he should be stigmatized for violence and tyranny; so he thought it best to take the damsel to wife. And while Simon was of a dignity too inferior to be allied to him, but still too considerable to be despised, he governed his inclinations after the most prudent manner, by augmenting the dignity of the family, and making them more honorable; so he immediately deprived Jesus, the son of Phabet, of the high priesthood, and conferred that dignity on Simon, and so joined in affinity with him [by marrying his daughter]. (Josephus, *Antiquities* 15:9:3)

Pharisee Persecution of Sadducees/ Boethusians

the **Sadducees**... are able to do almost nothing of themselves; for when they become magistrates, as they are unwillingly and by force sometimes obliged to be, they addict themselves to the notions of the Pharisees, because the multitude would not otherwise bear them. (Josephus, *Antiquities of the Jews* 18:1:4)

Water Libation

Our Rabbis taught, An incident with a certain **Sadducee** who poured [the water libation] on his feet, and the mob stoned him with their citrons. (*Babylonian Talmud*, Sukah 48b)

...it already happened that there was an incident with a certain **Boethusian** who poured [the water libation] on his feet and the entire mob stoned him with their citrons. (*Tosefta*, Sukah 3:16)

Rabbi Hiyya said in the name of Rabbi Yochanan, ...the water libation is a law given to Moses on Mt. Sinai [and not alluded to in the Torah]. This is against the opinion of Rabbi Akiva who said, The Torah spoke about the water libation on the second [day of Sukkot] with the word *veniskehem* וְנִסְכֵּיהֶם “and their libations” (Nu 29:18), on the sixth with the word *unesacheha* וְנִסְכֶּיהָ “and its libations” (Nu 29:31) and on the seventh with the word *kemishpatam* כְּמִשְׁפָּטָם “according to their judgement” (Nu 29:33). Mem, Yod, Mem teaches us about water. (*Jerusalem Talmud*, Shevi'it 1:5 33b)

וְנִסְכֵּיהֶם – וְנִסְכֶּיהָ – כְּמִשְׁפָּטָם

Yom Kippur Sacrifices

Why does [the high priest] turn aside and weep? Because it is necessary to force him to make a vow [to perform the Yom Kippur sacrifices in accordance with Rabbanite law]. Why do the [Rabbis] turn aside and weep? Because they have to force him to make a vow. Why did they have to force him to make a vow? Because there was already an incident with a certain Boethusian [High Priest] who burnt the incense before entering [the holy of holies] and the cloud of incense went out and shook the entire Temple. [He did this] because the Boethusians say that the High Priest must burn the incense before entering [the holy of holies], as it is written, “[And he shall place the incense on the fire before YHWH,] and the cloud of incense shall cover [the *kaporet* which is upon the testimony, that he die not.]” (Lev 16:13)... when the [Boethusian High Priest] came out he said to his father, “All your lives you have studied Scripture but have not acted upon it, until I stood up and acted!” [His father] responded, We study Scripture but do not act upon it because we obey the Rabbis. (**Tosefta, Yoma 1:8³**)

Sadducee Containment of Phariseeism

Now there was one Jonathan, a very great friend of [John] Hyrcanus's, but of the sect of the Sadducees, whose notions are quite contrary to those of the Pharisees... It was this Jonathan who chiefly irritated him, and influenced him so far, that he made him leave the party of the Pharisees, and abolish the decrees they had imposed on the people, and to punish those that observed them... (Josephus, *Antiquities* 13:10:6 [Whiston Translation])

Abba Saul ben Bothnith said in the name of Abba Joseph ben Hanin: ‘Woe is me because of the **house of Boethus**; woe is me because of their staves! Woe is me because of the house of Hanin, woe is me because of their whisperings! Woe is me because of the house of Kathros, woe is me because of their pens! Woe is me because of the house of Ishmael the son of Phabi, woe is me because of their fists! For they are High Priests and their sons are [Temple] treasurers and their sons-in-law are trustees and their servants beat the people with staves.’ (*Babylonian Talmud*, Pesachim 57a [Soncino Translation])

Sadducean/ Boethusian Doctrines

Sadducees on Free-Will

“the **Sadducees**... say, that to act what is good, or what is evil, is at men's own choice, and that the one or the other belongs so to every one, that they may act as they please.” (Josephus, *The Jewish War* 2:14)

And for the **Sadducees**, they take away fate, and say there is no such thing, and that the events of human affairs are not at its disposal; but they suppose that all our actions are in our own power, so that we are ourselves the causes of what is good, and receive what is evil from our own folly. (Josephus, *Antiquities of the Jews* 13:5:9)

³ The Tosefta is a commentary on the Mishnah: “The elders of the court handed him over to the elders of the priesthood, who brought him up to the upper chamber of Abtinias. And they imposed an oath on him and took their leave and went along. [This is what] they said to him, “My lord, high priest: We are agents of the court, and you are our agent and agent of the court. “We abjure you by Him who caused his name to rest upon this house, that you will not vary in any way from all which we have instructed you.” He turns aside and weeps. And they turn aside and weep.” (*Mishnah*, Yoma 1:5 [Neusner Translation])

Sadducee-Pharisee Debates

[1] The Sadducees say, 'We accuse you Pharisees because you say that the holy writings impurify the hands, but the books of Homer do not impurify the hands.' Rabban Yochanan ben Zakkai answered, 'That is all [you] have against the Pharisees? The [Pharisees] says that the bones of a donkey are pure but the bones of John [Hyrcanus] the High Priest are impure.' [The Sadducees] responded, 'That which is loved is deemed impure, so that a person does not make spoons out of the bones of his mother and father.' [Rabban Yochanan] retorted, 'So too the holy writings. Because they are loved, they are deemed impure, and the books of Homer which are not loved do not impurify the hands.' (*Mishnah*, Yadayim 4:6)

[2] The Sadducees say, "We accuse you Pharisees because you consider poured liquids clean (*nitzok* נִצּוֹק)." [3] The Pharisees say, "We accuse you Sadducees because you declare the water of an aquaduct that passes through a cemetery clean." [4] The Sadducees say, "We accuse you Pharisees because you say, 'I am liable for damage caused by my ox and my donkey but I am not liable for damage caused by my man-servant and maid-servant.' ... (*Mishnah*, Yadayim 4:7)

[5] A Galilean Sadducee said, "I accuse you Pharisees because you write the name of the ruler together with Moses in the bill of divorcement. The Pharisees said, "We accuse you Galilean Sadducee because you (pl.) write the ruler on paper together with the divine name... (*Mishnah*, Yadayim 4:8)

"The [Seleucid] Greeks decreed that the name of God may not be spoken aloud; but when the Hasmoneans grew in strength and defeated them they decreed that the name of God be used even in contracts... when the Rabbis heard about this they said, 'Tomorrow this person will pay his debt and the contract will be thrown on a garbage heap' so they forbade its use in contracts." (*Babylonian Talmud*, *Rosh Hashannah* 18b)

Sadducees Reject Concept of 'Eruv

(1) A person who lives with a Gentile in the same courtyard or with a Jew who does not admit [the validity] of an 'eruv, the [Gentile or Jew who does not believe in 'eruv] makes it forbidden [to carry from the Pharisee's house to his courtyard],⁴ the words of Rabbi Meir... (2) Rabban Gamliel said, An incident with a certain **Sadducee** who lived with us in an alley in Jerusalem and father said to us, "Hurry and bring out the vessels to the alley before he brings out his and makes it forbidden for you."⁵ Rabbi Judah said, "The story went differently: Hurry and do your needs in the alley before he brings out his and makes it forbidden for you." (*Mishnah*, Eruvin 6:1–2)

⁴ The presence of a Gentile or one who rejects the concept of 'eruv in the same courtyard as a Pharisee makes the courtyard into a "public domain" and according to Pharisee law it is forbidden to carry from a private house into a public courtyard. The Pharisee can however carry from his house into the public courtyard (without setting up an 'eruv) if he rents the rights over the courtyard from the Gentile or Jew who denies 'eruv.

⁵ The Pharisee family establishes their dominance over the alley by placing their property in the alley before the Sadducee, allowing them to carry from their house into the alley on the Sabbath (without the need to set up an 'eruv).

Edim Zomemim (Conspiratorial Witnesses)

Conspiratorial witnesses are not executed unless the verdict was given, but the Sadducees say that [they are not executed] unless the [falsely accused] is executed, as it is written, “a life for a life” (Dt 19:19)

Our Rabbis taught, Rabbi Judah ben Tabbari said, “May I be consoled [on the death of my children] because I executed a conspiratorial witness just to teach a lesson to the Sadducees who say, ‘Conspiratorial witnesses are not executed unless the accused was executed.’”

Resurrection of the Dead

The Sadducees deny saying, “As a cloud is consumed and vanishes, so too he who descends to *She’ol* will not ascend.” (Job 7:9) (*Midrash Tanchuma, Bereshit §5:5*)

At the end of every blessing in the Temple they used to say, ‘*ad ha’olam* “for ever”. From the time the Sadducees became corrupted saying there is no world but one, the [Rabbis] made an enactment that they would say [at the end of every blessing in the Temple], *min ha’olam ‘ad ha’olam* “for ever and ever”. (*Babylonian Talmud, Berachot 54a*)

But the **Sadducees**... also take away the belief of the immortal duration of the soul, and the punishments and rewards in Hades. (Josephus, *War* 2:14)

But the doctrine of the **Sadducees** is this: That souls die with the bodies... (Josephus, *Antiquities* 18:1:2–6)

(23) The same day some Sadducees came to him, saying there is no resurrection; and they asked him a question, saying, (24) "Teacher, Moses said, 'If a man dies childless, his brother shall marry the widow, and raise up children for his brother.' (25) Now there were seven brothers among us; the first married, and died childless, leaving the widow to his brother. (26) The second did the same, so also the third, down to the seventh. (27) Last of all, the woman herself died. (28) In the resurrection, then, whose wife of the seven will she be? For all of them had married her." (29) Jesus answered them, "You are wrong, because you know neither the scriptures nor the power of God. (30) For in the resurrection they neither marry nor are given in marriage, but are like angels in heaven. (31) And as for the resurrection of the dead, have you not read what was said to you by God, (32) 'I am the God of Abraham, the God of Isaac, and the God of Jacob'? He is God not of the dead, but of the living." (33) And when the crowd heard it, they were astounded at his teaching. (Matthew 22 [NRSV])

(6) When Paul noticed that some were **Sadducees** and others were Pharisees, he called out in the council, "Brothers, I am a Pharisee, a son of Pharisees. I am on trial concerning the hope of the resurrection of the dead." (7) When he said this, a dissension began between the Pharisees and the **Sadducees**, and the assembly was divided. (8) (The **Sadducees** say that there is no resurrection, or angel, or spirit; but the Pharisees acknowledge all three.) (Acts 23 [NRSV])

Shavuot

...the Boethusians used to say that the ‘*omer* (wave-sheaf) is not harvested following the first day of Passover. (*Mishnah, Menachot* 10:3)

...the Boethusians do not believe that Shavuot can be any other time than on Sunday. (*Tosefta*, Rosh Hashannah 1:15)

‘Am-Ha’aretz עַם הָאָרֶץ “People of the Land”

Modern definition of ‘am-ha’aretz: “ignoramus, uneducated person”.

What I would now explain is this, that the Pharisees have delivered to the people a great many observances by succession from their fathers, which are not written in the laws of Moses;... **the Pharisees have the multitude on their side.** (Josephus, *Antiquities of the Jews* 13:10:6)

Now, for the Pharisees, ...**they are able greatly to persuade the body of the people**; and whatsoever they do about Divine worship, prayers, and sacrifices, they perform them according to their direction... (Josephus, *Antiquities of the Jews* 18:1:3)

The clothing of the ‘am-ha’aretz are deemed as unclean⁶ for Pharisees. (**Mishnah, Chagigah 2:7**)

An ‘am-ha’aretz is not careful concerning touching his fellow. (**Babylonian Talmud, Chagiga 20b**)

Rabbi Shimon says, A person who gives his key to an ‘am-ha’aretz, the house is unclean. (**Tosefta, Taharot 8:1**)

It was taught, A member may not attend the celebration of an ‘am-ha’aretz nor the feast of an ‘am-ha’aretz. (**Jerusalem Talmud, Demai 2:2 22,d**)

An ‘am-ha’aretz who accepts upon himself all the ways of *membership* (*chaverut* חברות) except one, is not accepted ...Rabbi Yose of the House of Rabbi Yehudah says, Even [if he rejects] one small thing from the details of the Scribes. (**Tosefta, Demai 2:5**)

It was taught, An ‘am-ha’aretz who accepted upon himself the ways of *membership* (*chaverut* חברות) but is suspect concerning one matter, he is suspect regarding the entire Torah, the words of Rabbi Meir; the Sages say: He is only suspect concerning that one matter. (**Babylonian Talmud, Bechorot 30b**)

Our Rabbis taught, the wife of an ‘am-ha’aretz who marries a *member* (*chaver* חבר), the daughter of an ‘am-ha’aretz who marries a member, and the servant of an ‘am-ha’aretz who is sold to a member, all must accept upon themselves the ways of *membership* (*chaverut* חברות). (**Babylonian Talmud, Avodah Zarah 39a**)

What arises from all that has been said is that it is very desirable to outreach to the Karaites and allow them to marry a daughter of Israel, after they accept the ways of *membership* (*chaverut* חברות). (**Responsum of Rabbi Ovadiah Yoseph on the Karaites**)

It was taught, Who is an ‘am-ha’aretz? Anyone who does not eat his non-holy food in purity, so says Rabbi Meir; and the Sages say, Anyone who does not tithe his fruits

⁶ Literally: *Midras*, i.e. unclean because a menstruating woman stepped on it or sat on it.

properly... Our Rabbis taught: Who is an ‘am-ha’aretz? Anyone who does not recite *shema* in the evening and the morning, so says Rabbi Eliezer; Rabbi Joshua says, Anyone who does not put on Tefillin; Ben Azai says, Anyone who does not have *tsitsit* on his garment; Rabbi Nathan says, Anyone who does not have a Mezuzah on his entrance; Rabbi Nathan son of Joseph says, Anyone who has sons but does not raise them for Torah study; Others say, **Even if he has read [Scripture] and repeated (*shana* שָׁנָה) but has not ministered to the Rabbinical sages, this is an ‘am-ha’aretz.** Rav Huna says, the *halachah* is according to the “Others”. (**Babylonian Talmud, Berachot 47b**)

R. Hiyya and R. Jonathan were once walking about in a cemetery, and the blue fringe of R. Jonathan was trailing on the ground. Said R. Hiyya to him: Lift it up, so that they [the dead] should not say: Tomorrow they are coming to join us and now they are insulting us! He said to him: Do they know so much? Is it not written, “But the dead know not anything” (Ecc 9:5)? He replied to him: **If you have read once, you have not repeated; if you have repeated, you have not gone over a third time; if you have gone over a third time, you have not had it explained to you.** “For the living know that they shall die” (Ecc 9:5): these are the righteous who in their death are called living [Soncino Translation] (**Babylonian Talmud, Berachot 18a**)

From the time that the disciples of Shammai and Hillel — **who did not sufficiently minister to their masters** —multiplied, disputes multiplied in Israel, and the Torah became as two Torahs. (**Babylonian Talmud, Sanhedrin 88b**)